IN THE SUPREME COURT
STATE OF GEORGIA
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OF THE STATE OF GEORGIA

CHARLES CLARK et al.,
Appellants,
v.
THOMAS B. LEIGH, M.D. et al.
Appellees.

CHARLES CLARK et al.,
Appellants,
v.
THOMAS B. LEIGH, M.D. et al.
Appellees.

Case No. S26A0349

Lower Court Case No.
20SCCV091967 (Bibb State Ct.)

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APPELLANTS' REPLY BRIEF

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The trial court here erred in enforcing the statutory "cap" on noneconomic damages in this wrongful death medical malpractice case. The court's cursory analysis – taken from an order proposed by Defendants – ignored Defendants' waiver, failed to conduct the required severability analysis, and overlooked the constitutional failings of the "cap" under the framework of *Atlanta Oculoplastic Surgery, P.C. v. Nestlehutt*, 286 Ga. 731 (2010). This Court should reverse, with instruction to render a new Judgment that gives full effect to the jury's award of damages.

I. DEFENDANTS WAIVED THE "CAP" ARGUMENT

The trial court's first error was finding that Defendants properly preserved the "cap" issue. They did not. Instead, they stayed entirely silent on the issue until hearing the jury's verdict. By that point, the "cap" ship had sailed.

As noted in Appellants' Principal Brief, none of the three Pretrial Orders in this case so much as mentioned a damages cap. *See* V13 157-93 (PTO of May 21, 2024); *id.* 305-27 (PTO of July 18, 2024); V20 33-55 (operative PTO). In fact, in each Pretrial Order, Defendants explained that the proper measure of damages for any wrongful death claim was governed by the wrongful death statute, with not a word about the Cap Statute they now champion; in each, Defendants agreed that the "types of damages and applicable measure of those damages . . . would be those damages appropriate

appropriate pursuant to OCGA § 51-4-1 and OCGA § 51-12-2." V13 173; V13 315 (same); V20 43 (same; operative PTO); see O.C.G.A. §§ 51-4-1(1) (wrongful death chapter, defining "full value of the life of the decedent"); 51-12-2 (defining "general damages" and "special damages").

Under this Court's decision in *Ga. Dep't of Human Res. v. Phillips*, 268 Ga. 316 (1997), that litigation choice resulted in a waiver. *Phillips* is something of a paean to the importance of pretrial orders, especially when consented to and resulting in agreement on the issues in play, **for trial**. *Id.* at 318-20. And that makes all the sense in the world, given the statutory command that "[t]he order, when entered, controls the subsequent course of **the action** unless modified **at the trial** to prevent manifest injustice." O.C.G.A. § 9-11-16(b) (emphasis added).

Accordingly, the concession in the operative Pretrial Order that damages were to be governed by the Wrongful Death Statute operates as a waiver, pure and simple. *Compare McClure v. McCurry*, 329 Ga. App. 342, 343 (2014) (failure to include O.C.G.A. § 9-15-14 claim in pretrial order was not a waiver, since that statutory framework expressly allows for such motions to be filed after rendition of judgment).

Defendants contend that "[t]he cap plays no role at trial," and is really just a post-judgment legal issue. EE Brief at 2. That's plainly incorrect. *Phillips*, 268 Ga. at 319 (aggrieved litigant cannot complain about pretrial

order "cap" concession, since it would unduly burden an opposing litigant's ability to conduct the trial). That a jury does not decide whether the cap applies has basically nothing to do with the conduct of trial: what claims are raised (*i.e.*, lesser-value economic damages claims, such as lost wages), what witnesses are called, what testimony is elicited, what documentary evidence is submitted, and what arguments are emphasized in closing. *E.g.*, V25 63 (previewing damages portion of closing as being essentially about the "full value of the life" of April Clark); 110-15 (Plaintiffs' closing: "I want to talk about what the wrongful death damages mean" and including only noneconomic concepts); V25 200-02 (charge conference; decision not to put up evidence of lost wages impacts charges given to jury). Not to mention the verdict form, which could have segregated the economic and noneconomic damages for the wrongful death claim, had it been known that Defendants would contend that the cap was in play.

And the defense seized on the information vacuum: in their closing, Defendants went all-in on the bogeyman of an exorbitant (read: cap-exceeding) verdict, expressly arguing that Plaintiffs would be asking for "millions" of dollars and for that reason the jurors should be especially skeptical of the arguments and evidence proffered by the Clarks. V25 73, 96. Defendants deny that the cap affected the Clarks' strategy or impacts plaintiffs' trial strategies generally, EE Br. at 17-19, but their arguments ring

ring hollow. They first cherry-pick language from *Nestlehutt* to argue that this Court has concluded that the cap does not affect the evidence at trial. EE Br. at 18. In fact, the quoted language appears in the context of the Court's retroactivity analysis, in which the Court was looking **only** at whether the **defendants'** litigation strategy was affected by the existence of the cap. *Nestlehutt*, 286 Ga. at 739.

As any plaintiff's lawyer knows, it is often wise to minimize the evidence of economic damages — or forgo seeking them altogether — where those damages are small compared to potential noneconomic damages, to avoid the psychological "anchoring" effect this may have on the jury's assessment of noneconomic damages. In this case, if there had been any **hint** that Defendants were going to claim a long-dead cap would apply, the evidence as to lost wages and pain and suffering would almost certainly have been different; and the openings and closings, the charges, and the "ask" as to particular subparts of damages would **definitely** have been different.

That's why a pretrial order is so important: it demands transparency, to prevent surprises and sandbagging. And it is of no moment whether the omitted issue is in the nature of a procedural defense, "rather than an issue pertaining to the merits to be resolved at trial"; it can and will be waived "if [it] is omitted from the [pretrial] order." *Long v. Marion*, 257 Ga. 431, 433 (1987); *accord Zambetti v. Cheeley Invs., L.P.*, 343 Ga. App. 637, 642 (2017)

(legal defense of Statute of Frauds waived, if omitted from pretrial order); *Eagle Jets, LLC v. Atlanta Jet, Inc.*, 321 Ga. App. 386, 400 (2013) (dispositive legal **defense** of federal pre-emption omitted from pretrial order and thus waived).[1]

Defendants' favored case, *Scott v. Battle*, 249 Ga. App. 618 (2001), does not assist them. There, because of the particular statute in play, the **damages cap was the default**; it was the plaintiff who had the burden of making the specific factual showing required to "alter the status quo"; and the plaintiff failed to do that by, among other things, failing to request special interrogatories **in the pretrial order**. *Id.* at 622. Because the cap was the "status quo," the Court of Appeals held that the defendant was permitted to seek a reduction of damages via a post-trial motion, without having objected to the verdict form or the verdict when rendered. *Id.* at 622-23.

Here, the exact opposite is true; the "status quo" since *Nestlehutt* has been that § 51-13-1's noneconomic damages cap is unconstitutional, and until *Turner*, it was understood that this extended to wrongful death claims just as all other medical malpractice claims. In these circumstances, the onus was on Defendants to assert, in the Pretrial Order, their proffered basis for altering

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[1] Defendants belittle these cases as going only to liability, or jurisdictional defenses that are waived if not ruled on before trial. EE Br. at 15-16. But the PTO "waiver" cases do not turn on the nature of the issue omitted. The rule is simple: if a litigant omits an issue from a PTO, it is waived.

that status quo, or suffer the consequence: a waiver of that argument.[2]

II. SEVERABILITY CANNOT SAVE THE CAP

A. The Baseline Argument: The Caps on Wrongful Death Awards Cannot Survive a Severability Analysis After *Nestlehutt*.

The trial court further erred by either failing to conduct a severability analysis or implicitly performing one that was well off the mark. The baseline is simple: when a portion of a statute is held unconstitutional, or otherwise invalidated, a severability analysis is **required** to discern whether giving effect to the remaining portion of the statute "will correspond with the main purpose which the legislature sought to accomplish by its enactment." *City Council of Augusta v. Mangelly*, 243 Ga. 358, 363 (1979), *superseded by statute on other grounds as stated, Nietubowicz v. Chatham Cty.*, 252 Ga. 330, 330 n.1 (1984) (emphasis added); *see Daimler Chrysler Corp. v. Ferrante*, 281 Ga. 273, 274 (2006); *see also* NT Brief at 18-25. Such an analysis requires an assessment of the provisions' "mutual dependence": "in order for one part of a statute to be upheld as severable when another is stricken as unconstitutional, they must not be mutually dependent on one another." *Daimler Chrysler*, 281 Ga. at 275 (emphasis added).

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[2] Defendants also cite numerous cases from other jurisdictions about why not raising a "cap" as an affirmative defense **in an Answer** is not a waiver. EE Br. at 14. That nonbinding authority is simply not germane to the impact of omissions and affirmative concessions in a pretrial order.

unconstitutional, they must not be mutually dependent on one another."

Daimler Chrysler, 281 Ga. at 275 (emphasis added).

B. The Trial Court's Erroneous Approach and Conclusion

The trial court did not recognize those governing analytical rules. To the contrary, the trial court abdicated that role, disclaiming the need for "word-by-word editing," since, in its view, the statute could be held constitutional as applied. V26 154. That end result is impossible under the statutory language, the Legislature's intended goal, and this Court's governing precedent.

The statutory language is, of course, paramount. The question is whether it is possible to excise from this language the provisions of the statute the *Nestlehutt* Court held to be unconstitutional, *i.e.*, the cap on pain and suffering damages and loss of consortium awards in medical malpractice cases. The answer is no:

- In every "medical malpractice action" under the statute, there can be only one "claimant," regardless of how many plaintiffs there are, and even if there are multiple claims held by those plaintiffs, there still is but one "cap," O.C.G.A. § 51-13-1(a)(1);[3]
- Any statutory "cap" on noneconomic damages applies to "any verdict returned or judgment rendered," *id.* at (b) – meaning the Legislature intended for a one-size-fits-all cap to apply in any

[3] It is extremely common for a medical malpractice action to include a death claim (for which a plaintiff is determined by statute) and a pain and suffering claim (held by a decedent's estate, often piloted by a different individual than the statutory death beneficiary).

action," without separate verdicts or judgments based upon claimant or claim;

- A single cap applies to every verdict/judgment against doctors and their practice, again aggregating plaintiffs, causes of actions, and jury awards, *id.* at (b) ("total amount recoverable" is capped);

In short, the "remaining" statutory language is completely interdependent with the constitutionally infirm portions of O.C.G.A. § 51-13-1.

This case exemplifies the impossibility of severability given the statutory language. Both Charles Clark (the plaintiff with standing to bring a death claim) and April Clark (Estate claims) are one "claimant" under the statute, and subject to a single "cap" as to the "total amount recoverable . . . regardless of . . . the number of separate causes of action" asserted. O.C.G.A. § 51-13-1(b). But under *Nestlehutt*, the cap **cannot** apply to April Clark's claims. It is simply impossible to give effect to the plain language of the Cap Statute while also honoring *Nestlehutt*. The only way to cap the wrongful death claim but not the Estate claim is to rewrite the Cap Statute. It is, under the statutory interpretation urged by Defendants, impossible to render the Judgment bundling all of the claims, here.

The trial court's ultimate holding did not even attempt to parse which portions of the Statute remained viable; there was no meaningful discussion of legislative intent; there was really no more analysis than "as applied, the caps on death awards can stand." But the severability and interdependency

of legislative intent; there was really no more analysis than "as applied, the caps on death awards can stand."

[*Omitted from this transcription: the filed brief's pages 13 to 17, the remainder of section II.B and section II.C.1 and II.C.2.*]

C. Defendants' Contrary Arguments Fail

*3. A Post-*Nestlehutt *Version of the Cap Statute Fails to Support the Legislature's Intent*

Lastly, the Defendants argue that even under a severability framework, the wrongful death cap survives because any such cap furthers the General Assembly's intent. EE Br. at 26-29. A reductionist argument that "any cap is a good cap" does not square with an analysis of the potentially constitutional language that remains, post-*Nestlehutt*, when that process occurs, there is simply no intellectually honest method to carve up the language of the Cap Statute to support the trial court's ruling, without straying over the separation of powers principles that bind every Georgia court.

[*Omitted from this transcription: the filed brief's pages 19 to 32, the rest of section II.C.3, section III, section IV and section V.*]

[*Omitted from this transcription: the filed brief's page 33.*]

At base, Defendants now glom onto an argument that they never

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fleshed out below and the trial court did not rule on – and that is substantively wrong besides. *Nestlehutt* is good law and the Court should decline to overrule that unanimous decision.

litigants do not raise the severability issue, but that omission means nothing more than that severability is an issue for another day – as this Court recognized in *Turner*. *See United States v. Booker*, 543 U.S. 220, 247, 125 S. Ct. 738, 758 (2005) (recognizing that "severability questions can arise from unconstitutional applications of statutes").

~~3. A Post-*Nestlehutt* Version of the Cap Statute Fails to Support the Legislature's Intent~~

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~~At base, Defendants now glom onto an argument that they never~~

of severability in their briefs **and** because there was no underlying finding of invalidity of the law at issue. *Id.* (emphasis added). *Local 514 Transp. Workers Union of Am. v. Keating*, 85 P.3d 835, 838-39, 841 (Okla. 2003) is no better; there, the severability analysis was unnecessary because the law in question was preempted by federal law.

CONCLUSION

The trial court's embrace of the wrongful death cap was wrong, both for procedural reasons and on its merits. The Order enforcing the cap should be reversed.

This submission does not exceed the word-count limit imposed by Rule 20.

Respectfully submitted, this 29th day of December, 2025.

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